बिड संख्या/Bid Number: GEM/2026/B/7694467
दिनांक /Dated: 22-06-2026

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	13-07-2026 14:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	13-07-2026 14:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Mines
विभाग का नाम/Department Name	Hindustan Copper Limited
संगठन का नाम/Organisation Name	Hindustan Copper Limited
कार्यालय का नाम/Office Name	Kolkata Corporate Office
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :panduranga_lm@hindustancopper.com Buyer Email id: neha_g@hindustancopper.com
वस्तु श्रेणी /Item Category	Facility Management Services - LumpSum Based - Industrial; DGPS Survey and Topographical Survey of the Forest land; Consumables to be provided by service provider (inclusive in contract cost)
अनुबंध अवधि /Contract Period	6 Month(s) 4 Day(s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Bidder Turnover,Certificate (Requested in ATC),Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)

बिड विवरण/**Bid Details**	
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / **Minimum number of bids required to disable automatic bid extension**	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / **Number of days for which Bid would be auto-extended**	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / **Number of Auto Extension count**	1
बिड से रिवर्स नीलामी सक्रिय किया/**Bid to RA enabled**	No
बिड का प्रकार/**Type of Bid**	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /**Time allowed for Technical Clarifications during technical evaluation**	3 Days
अनुमानित निविदा मूल्य (सभी करों सहित) भारतीय रुपये में / **Estimated Bid Value in INR (Inclusive of all taxes)**	1585100
Payment Timelines	Payments shall be made to the Seller within **30** days of issue of service delivery acceptance certificate (SDAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/**Evaluation Method**	Total value wise evaluation
मूल्य दर्शाने वाला वित्तीय दस्तावेज ब्रेकअप आवश्यक है / **Financial Document Indicating Price Breakup Required**	Yes
मध्यस्थता खंड/**Arbitration Clause**	No
सुलह खंड/**Mediation Clause**	No

ईएमडी विवरण/EMD Detail

एडवाईजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	37408

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%)/ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	8

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने है। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b).ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c).ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

Manager (Chemical)-Contracts
Hindustan Copper Ltd, Indian Copper Complex, Moubhandar Ghatsila, Dist East Singhbhum Jharkhand 832103
(Neha Gedam)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई अनुपालन/MII Compliance

एमआईआई अनुपालन/MII Compliance	Yes

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य L1+X% / Purchase Preference to MSE OEMs/ Service Provider available upto price within L1+X%	15

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for % (selected by Buyer) percentage of total

quantity. The buyers are advised to refer the OM_No.1_4_2021_PPD_dated_18.05.2023 for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.
2. If L-1 is not an MSE and MSE Service Provider (s) has/have quoted price within L-1+ 15% of margin of purchase preference /price band as defined in the relevant policy, then 100% order quantity will be awarded to such MSE bidder subject to acceptance of L1 bid price.
3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

एक्सेल में अपलोड किए जाने की आवश्यकता /Excel Upload Required :

PRICE BOQ - 1782111311.xlsx

अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

Scope of work:1782111581.pdf

Details of the premise:1782113491.pdf

Pre Bid Detail(s)

मूल्य भिन्नता खंड दस्तावेज़/Pre-Bid Date and Time	**प्री-बिड स्थान/Pre-Bid Venue**
29-06-2026 11:00:00	Engineer Incharge, General Office building, Moubhandar Ghatsila, Dist East Singhbhum Jharkhand 832103

Facility Management Services - LumpSum Based - Industrial; DGPS Survey And Topographical Survey Of The Forest Land; Consumables To Be Provided By Service Provider (inclusive In Contract Cost) (1)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	**मूल्य/ Values**
कोर / Core	
Type of Premises	Industrial
Type of services required	DGPS Survey and Topographical Survey of the Forest land
Cost for Consumables/ Materials	Consumables to be provided by service provider (inclusive in contract cost)
Service component	DGPS Survey and Topographical Survey
एडऑन /Addon(s)	

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer

क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer	No

अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

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परेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	Quantity	अतिरिक्त आवश्यकता /Additional Requirement
1	NEHA GEDAM	832103,Post- Moubhandar, Sub-division - Ghatsila, Dist-East-Singhbhum, Jharkhand-832103	Project / Lumpsum Based	N/A

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. **Generic**

   OPTION CLAUSE 25% : The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, the contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration.
   For lumpsum-based service contracts, the buyer may increase the scope of work and contract value up to 25 percent with the consent of the service provider

2. **Generic**

   Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

3. **Forms of EMD and PBG**

   Bidders can also submit the EMD with Payment online through RTGS / internet banking in Beneficiary name

   Hindustan Copper Ltd
   Account No.
   00000011524102778
   IFSC Code
   SBIN0001484
   Bank Name
   State Bank of India
   Branch address
   Moubhandar, Dist. East Singhbhum Jharkhand-832103
   .
   Bidder to indicate bid number and name of bidding entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer along with bid.

4. **Buyer Added Bid Specific ATC**

   Buyer Added text based ATC clauses

   Sub: DGPS Survey and Topographical Survey of the Forest land proposed for Tailing Management under Capacity Enhancement of Mosabani Concentrator Plant and Tailing management land for 1.5MTPA Green field project.

Dear Sirs,

Online Tenders are invited through above Portal in Two Part Bid system for supply of following servi ces at our Indian Copper Complex Unit, Ghatsila, Dist. East Singhbhum, Jharkhand-832103: -

S.No.	Item Code	Description of Job with Specification/Part No./ Make etc.	Unit	Qty.
1	905194817	DGPS Survey of Forest Land	NUMBER	300
2	905547260	Topographical Survey	SQUARE METRE	1300000

Note: L-1 will be decided on overall L-1 basis
Note to Bidder:
i) Bidders must submit their rate for the above line items according to enclosed price submission p df and price submission excel and to upload in financial bid. Total price should match while submis sion in GeM as well as submission in pdf file and excel file.
ii) Bidder has to refer General Terms and Conditions, and quote their price inclusive of GST as per enclosed price BOQ with grand total including GST value.
iii) Price submission by the bidders either in hard copies or in the techno-commercial part-1 bid or i n their letter head shall be summarily rejected.

EARNEST MONEY DEPOSIT (EMD):

The offer should accompany with an amount of Rs. 37,408/- (Thirty Seven Thousand Four Hundred eight only) towards Earnest Money Deposit is to be submitted in RTGS/NEFT/BG (including e bank guarantee)/ Insurance Surety Bond. Offers without Earnest Money will be rejected outright. Similarly, EMD in any oth er form will not be accepted. The EMD provided by the tenderers along with the tenders shall be returne d to the unsuccessful tenderers within thirty days from the date of opening of price bid / placement of pu rchase order/signing of the job contract, whichever is earlier.

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Conditions for accepting Insurance Surety Bond

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1. Having net worth more than (10) times the value of Insurance Surety bond required to be s ubmitted to HCL, with minimum net worth of Rs. 1000 Cr.
2. Has positive Profit Before Tax.
3. Has minimum AAA Credit rating by SEBI registered authorized Credit rating agencies.

The insurance surety bond must be executed on non-judicial stamp paper of appropriate value based on applicable state law as per format attached with the tender document.

However, SSI units registered with NSIC are exempted from payment of EMD against valid documentary proof, which has to be submitted along with Techno-Commercial Bid.

The following are exempted from submission of EMD

i. Public Sector Undertakings /Govt. Dept/Govt. Institutions

ii. Micro and Small Enterprises (MSEs) as defined in the MSE Procurement Policy issued by the Department of Micro, Small and Medium Enterprises (MSME) and registered Startups as recognized by the Department for Promotion of Industry and Internal Trade (DPIIT) are exempt from payment of EMD. In case the bidder falls into these categories, the bidder should furnish a certified copy of its valid registration details. Micro and Small Enterprises registered with MSME Udyog Aadhar Memorandum (UAM), Districts Industries Centers (DICs)/Khadi & Village Industries Commissions (KVIC)/Khadi & Village Industries Board (KVIB)/Coir Board/NSIC/ Directorate of Handicrafts and Handloom or any other body specified by Ministry of Micro, Small & Medium Enterprises up to the extent of their monetary limit. For MSEs, the exemption from paying EMD is to be granted only for the items for which they are registered with the concerned authorities. Micro and Small Enterprises (MSEs) registered under Udyam Registration are eligible to avail the benefits under the policy.

iii. **Original Equipment Manufacturers (OEMs).**

Our Bank Details is as follows:	
State Bank of India. Branch- Moubhandar. Dist. East Singhbhum Jharkhand-832103.	IFSC CODE- SBIN0001484 Branch Code- 001484 A/C. No. 00000011524102778 _
Our GST No : 20AAACH7409R1ZF	

Bidder has to upload scanned copy/proof of the Online Payment towards EMD submission.
If the bidder withdraws or modify their bids during the period of validity of tender etc, they will be suspended for next Six (06) Months from the date of issue of suspension letter for participation in the future tender of HCL/ICC.

Annexure-I
(PQC)

PRE-QUALIFICATION CRITERIA:

a. Party must have to provide executed order copy/copies of successfully conducting DGPS or Topographical survey in any Govt/PSU's / Listed companies having Company Identification Number (Not Private Limited) during last seven years ending last day of the month previous to the one in which offers are invited fulfilling either of the following: -).

(i) One (1) executed order copy of basic value not less than Rs 12.68 Lakhs

(ii) Two (2) executed order copy of basic value not less than Rs. 7.92 lakhs for each or

(iii) Three (3) executed order copy of basic value not less than Rs. 6.34 lakhs for each

Successful Job completion certificate where the reference of work order is mentioned is to be enclosed along with copy of such successfully executed contract for the requisite values of PQC point no. a. i) OR a. ii)OR a. iii).

b. The Bidder shall have positive net worth as per their latest audited financial statement. Relevant documentary evidence including copies of Annual Report, containing Profit & Loss Statement and Balance Sheets for immediate preceding three (3) consecutive accounting years ending March-2025 should be furnished together with the bid. Balance sheet, Profit & Loss Account duly audited, stamped and signed by CA /CA Firm mentioning UDIN, FRN and MRN for Financial Year 2022-23, 2023-24 and 2024-25 are to be enclosed.

The Bidder should an average annual financial turnover of at least **Rs 4.76 Lakhs** during the last 3 years, ending 31st March 2025.

c. Site visit shall be mandatory before submission of bid. Bidder should visit the site (Benasole & Jamsole) prior to bidding in the contract to better understand the job and should submit a declaration certificate duly certified by the engineer-in-charge in the attached proforma (site visit format is at annexure-iv).

Annexure-II

(SOW)

HCL/ICC has initiated the expansion project of the existing concentrator plant at Mosabani to increasing its capacity from 0.4 MTPA to 0.9 MTPA and Establishment of a new Concentrator plant of 1.5 MTPA at Moubhandar.

For these developments, additional land is required for tailing management as recommended by MECON in the final TEFR. The HCL/ICC team has identified suitable land in close proximity to the plant.It is important to note that the entire identified land falls under the category of forest land. Therefore, prior approval in the form of forest clearance from MoEF & CC is mandatory for utilizing this land for the construction of the tailings pond. For submission of the forest clearance proposal through the designated online portal (PARIVESH 2.0), it is essential to furnish a certified DGPSmap and land Schedule of the land. This map will accurately define the geo-referenced boundaries of the area proposed for diversion.

In addition to the above, a detailed topographical survey of the land is required to capture the existing ground conditions and contours. The updated ground profile obtained from this survey will serve as a critical input for the planning, design, and construction of various structural components of the tailings pond, ensuring technical accuracy, safetyand long-term stability of the facility.

The details scope of work is given below.

Scope of work:

Part-A (For Jamsole-Sonagora Tailing Pond Area)

To carry out a survey of forest and other land boundaries using DGPS and to conduct a topographic survey of the entire area using a Total Station/drone or laser scanner. The scope also includes submission of AutoCAD drawings, raw data, contour maps, Geo-referenced DGPS-surveyed maps, KML files, and a certified land schedule in both hard and soft copies.

Area required Drone/Total Station Survey- 58Ha (+/- 10%) at Jamsole-Sonagora with 50 mtr buffer.

Topographical survey with contour Master plan showing the followings:-

–

a) All natural features such as ditches and water bodies, perineal/main nala in vicinity to the proposed lan d.

b) All man-made features such as existing buildings, roads, overhead electric lines, electrical pylons, wells, pipelines, and all other permanent structures.

c) Geo-referenced Contour map with a 1.0 m interval along with grid lines.

d) The area shall be depicted on the topo sheet.

e) All raw and final data, along with the report shall be submitted to HCL on a hard disk or pen drive.

DGPS Survey of Forest Land Proposed for Diversion:

a) Establish of Ground control points (GCP) for DGPS survey of the identified land for tailing managem ent and pipeline route.

b) Establish and Survey of all corner points along with the boundary points by PPK (Post-Processed Ki nematic) for high-precision/accuracy.

c) Processing of all DGPS point for preparation of georeferenced DGPS Map in Auto Cad format for for est diversion proposal of the forest land involved in the Tailing pond site and Pipeline Route.

d) Preparation of shape and kml file of the entire land/patches as per HCL requirement.

e) Modification of area requirement like Maps, Kml files, Land Schedule if required.

f) Posting of corner pillar along the final land boundary and writing of pillar Id and co-ordinates.

g) Map showing the area applied for diversion on Topo sheet for both tailing pond and Pipeline route.

h) Certification of the all maps from Govt. authority for online application of forest diversion proposal in PARIVESH 2.0 portal.

i) All the Raw data and final data along with report is to be submitted to HCL in Hard Disk/Pen drive.

j) Break-up of land required DGPS Survey is as follows:

For the Mosabani Concentrator Plant Expansion (approximately 58 hectares, subject to ±10% variation after DGPS survey), four tentative patches with a total area of around 58 hectares have b een identified at Jamsole & Sonagora by the committee for DGPS survey. The number of pillars is e stimated to be approximately 150 (±10%). The item code for the said job is 905194817.

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Part-B (For Benasole-Uparbandha Tailing Pond Area)

Area required Drone/Total Station Survey- 72 Ha (+/- 10%) at Benasole-Uparbandha with 50 mtr buffer.

Topographical survey with contour Master plan showing the followings:-

–

a) All natural features such as ditches and water bodies, perineal/main nala in vicinity to the proposed lan d.

b) All man-made features such as existing buildings, roads, overhead electric lines, electrical pylons, wells, pipelines, and all other permanent structures.

c) Geo-referenced Contour map with a 1.0 m interval along with grid lines.

d) The area shall be depicted on the topo sheet.

e) All raw and final data, along with the report shall be submitted to HCL on a hard disk or pen drive.

DGPS Survey of Forest Land Proposed for Diversion:

a) Establish of Ground control points (GCP) for DGPS survey of the identified land for tailing management.

b) Establish and Survey of all corner points along with the boundary points by PPK (Post-Processed Kinematic) for high-precision/accuracy.

c) Processing of all DGPS point for preparation of georeferenced DGPS Map in Auto Cad format for forest diversion proposal of the forest land involved in the Tailing pond site and Pipeline Route.

d) Preparation of shape and kml file of the entire land/patches as per HCL requirement.

e) Modification of area requirement like Maps, Kml files, Land Schedule if required.

f) Posting of temporary pillar for marking the area only.

g) Map showing the area applied for diversion on Topo sheet for both tailing pond.

h) Certification of the all maps from Govt. authority for online application of forest diversion proposal in PARIVESH 2.0 portal.

i) All the Raw data and final data along with report is to be submitted to HCL in Hard Disk/Pen drive.

j) Break-up of land required DGPS Survey is as follows:

For the proposed new concentrator plant at Moubhandar (approximately 72 hectares, subject to ±10% variation after DGPS survey), four tentative patches with a total area of around 72 hectares have been identified at Benasole & Uparbandha by the committee for DGPS survey. The number of pillars is estimated to be approximately 150 (±10%). The item code for the said job is 905194817.

As the TEFR has not yet been initiated, we are proceeding with the available land at Benasole and Uparbandha as decided by the committee.

Note: The party shall carry out all the requisite works necessary for completion of the task including those not explicitly mentioned in the scope of work in accordance with standard contract term & conditions.

HCL team will provide the tentative KML file of the proposed area.

· **Both jobs are similar in nature hence both job must be carried out by the overall L-1 BIDDER**

Annexure-III

(Terms and Conditions)

Terms & Conditions

1. **RATES:** Rates quoted should be firm and final and no special clause, terms and conditions should be added in this regard. The rates quoted should be fixed for the entire period of the contract. However, G ST will be paid extra as per rules prevailing at the time of execution of order.

L-1 bidder shall be decided on overall L-1 basis as these jobs are inter dependent and inter related.

2. **PERIOD OF CONTRACT:**

The contract shall be effective for 06 Months from the date as stipulated in GeM Contract.

3. **COMMENCEMENT OF WORK:** The Contractor, to whom the work is awarded, will be required to co mmence the work with the labour so approved by E-I-C, after completion of training under Safety Rule s. The Contractor will be required to commence the work as stipulated in the Work Order/LOI, whichev er is earlier or as directed by the HCL/ICC.

4) ePBG/SECURITY DEPOSIT (SD):

4.0 The successful bidder, hereinafter called the Contractor shall be required to deposit 10% of the tot al Work Order value for the contract (inclusive of all, on overall value) for Security Deposit. Out of this, the initial Security Deposit will amount to 5% of the total Contract/ Work Order value including GST. T he Initial Security Deposit is to be deposited in Insurance Surety Bond/ /NEFT/RTGS/Fixed Deposit Rec eipt/Bank Guarantee in HCL's format (Annexure-VI) from a Scheduled Commercial Bank (except Co-Op erative and Gramin Bank) as Security Deposit within 30 (Thirty) days of issue of LOI / Work Order, whic hever is earlier. The BG shall be valid for **Eight (08) months** from the date of issue of LOI / Work Orde r, whichever is earlier. **The contractor would be required to extend the validity of bank guara ntee from time to time as per provision of the Purchase Order.**

Successful bidder shall deposit penal interest @ 18% per annum on a pro-rata basis on acc ount of any delay towards submission of Security Deposit amount after assigned period of 30 days of issue of LOI/Work Order.

4.1 Payment to the contractors shall be kept withheld till receipt of Security Deposits as above. The pa yment to the Contractor as per terms of the contract shall be effected only after the required Security Deposits has been submitted by the Contractor.

4.2 The Security Deposit equivalent to the balance 5% of the total Contract/ Work Order value includin g GST will be recovered from the progressive bills of the contractor @10% from each RA Bill.

4.3 The Security Deposit shall bear no interest and refund will be as per provision of the Contract.

4.4 The method of submission of Bank Guarantee is as below:

4.4.1 The bank guarantees issued by the issuing bank on behalf of the successful bidder in favour of H industan Copper Limited (HCL) shall be in hard copy in original on stamp paper as well as Structured Fi nancial Messaging System (SFMS).

4.4.2 HCL has chosen State Bank of India to act advising/beneficiary bank of HCL. The bank issuing th e guarantee should choose this bank to send confirmation through SFMS.

4.4.3 The details of beneficiary (i.e. HCL) for issue of bank guarantee through SFMS platform is as furn ished below:

<table>
<tr><td colspan="2">Our Bank Details is as follows :</td></tr>
<tr><td>State Bank of India.
Branch- Moubhandar.
Dist. East Singhbhum
Jharkhand-832103.</td><td>IFSC CODE- SBIN0001484
Branch Code- 001484
A/C. No. 00000011524102778</td></tr>
<tr><td colspan="2">Our GST No : 20AAACH7409R1ZF</td></tr>
</table>

4.4.4 The Successful bidders are required to take note of it that above particulars are to be incorporated by the issuing bank properly while issuing the Bank Guarantee under SFMS mode to avoid any future problem in accepting the BGs.

4.4.5 The Guarantor (BG issuing bank) shall send information about issuance of this Guarantee through SFMS gateway to the State Bank of India Branch- Moubhandar (IFSC- SBIN0001484), to aid in the process of confirmation of Bank Guarantee.

4.4.6 The BG shall also have a clause that “The BG shall be operable including encashment at issuing bank’s any local branch in Ghatsila / Jamshedpur”

4.4.7 The Original Bank Guarantee issued by the outstation bank shall be sent by the Issuing Bank to the Hindustan Copper Limited, Indian Copper Complex at Ghatsila by Speed Post /Registered Post (AD).

4.5 The Company shall be at liberty to deduct and appropriate from the Security Deposit such penalties and dues as may be payable by the Contractor under the contract and the amount by which the Security Deposit shall get diminished will be made good by further deduction from the Contractor’s subsequent bills in the same manner as aforesaid until the security deposit is restored to its full limit mentioned above.

4.6 The Company shall have the full right to forfeit and appropriate the security deposit on breach of any of the terms and conditions laid down herein or will be applicable in future, without prejudice to the rights of the Company or otherwise available under the law.

4.7 Any dues of the Company against the Contractor under the contract resulting from award of work to some other agency at the risk and cost of the Contractor shall be adjustable against the security deposit and if SD is insufficient, the same shall be recovered from the Contractor.

4.8 In case of termination of the contract by the Contractor, the Company shall have the right to forfeit the Security Deposit.

4.9 On due and satisfactory performance and completion of the contract in all respect and settlement of final bills, the Security Deposit will be returned to the Contractor without any interest on presentation of an absolute No Demand Certificate in the form as may be prescribed by the Company.

4.10 In case of repeat order placed on the successful tenderer, subject to their satisfactory performance, the validity of SD provided for the original order shall be extended suitably by the successful tenderer to cover the additional quantity awarded in the repeat order. The same shall also be applicable in case Option Clause is invoked.

4.11 The Security Deposit should remain valid for a period of 60 (sixty) days beyond the date of completion of all contractual obligations of the supplier/contractor, including warranty obligations.

4.12 The Security Deposit will be forfeited and credited to HCL’s account in the event of a breach of contract by the contractor. The Security Deposit shall be forfeited in case the successful bidder fails to honor contractual obligations. Security Deposit shall be refunded to the contractor without interest, after successful performance and completion of the contract in all respects but not later than 60 (sixty) days of completion of all obligations including the warranty under the contract, subject to recovery of claim if any.

4.13 Security Clause shall not apply to the: 1) Public Sector Undertakings, 2) Government departments/Government institutions and 3) OEMs

5. <u>INSPECTION</u>: The inspection of the work done will be done by our engineer whose decision shall be final and binding to the contractor or during execution of the entire work.

6. <u>MANAGEMENT’S RIGHTS</u>:

i) The Company reserves the right to reject/accept any part or full tender.

ii) The Company reserves the right to award the work to eligible party either in full or parts thereof. The decision of the Company is final and binding.

iii) The Company reserves the right to change the specifications at any stage.

iv) In the event the Contractor is unable to provide required number of skilled and unskilled labour or withdraws after the issue of LOI by the Company but prior to submission of SD, any amount due with the Company will be withheld, besides initiating appropriate action.

6. PAYMENT: The payment thereon shall be released by e-payment/RTGS payment within 30 days of presentation of bills complete in all respects. However, the statutory deductions like Income tax, etc. shall be made before making the payment.

The Contractor must submit Bank Mandate for e-payment/RTGS payment in the format provided at Annexure- V.

7. GST COMPLIANCE:

“GST will be paid extra by HCL to be claimed in the bills so that HCL can avail Input Credit Tax for the same. No subsequent claim on this account will be entertained by HCL. The GST shall be deposited with the Government by the contractor/supplier in accordance with the statutory provisions of the GST Law. Further, the contractor/supplier agrees that he shall maintain high GST compliance rating track record at any given point of time and consents to the following:

a) The details of outward supplies made by the contractor/supplier to HCL will be uploaded in Form GSTR-1 by 11th of the month following the month/quarter for which the return is to be filed.

b) Once contractor/supplier has uploaded the details of outward supplies in Form GSTR- 1, contractor/supplier agrees to file the return in Form GSTR-3B by 20th of the month succeeding the month/quarter for which return is to be filed without any delay.

c) Wherever contractor/supplier is required to issue e-invoice containing all the particulars as specified in Form GST INV-01 in terms of Rule 48(4) of the CGST Rules, it is agreed that contractor/supplier will comply with such e-invoicing requirements.

d) In case the Input Tax Credit of GST is denied or demand is recovered from HCL on account of any non-compliance by contractor/supplier, including non-compliance with e-invoicing provisions, delay or non-filing of Form GSTR-1 and Form GSTR- 3B, non-payment of GST charged and recovered, contractor/supplier shall indemnify HCL in respect of all claims of tax, penalty and/or interest, input tax credit, loss, damages, costs, expenses and liability that may arise due to such non-compliance

e) Notwithstanding any other clause of the tender document the payment to the contractor/supplier shall be made only upon invoices being reflected in FOMR GSTR-2A/2B of the relevant month.”

8. LOSS OR DAMAGE TO PROPERTY:

Any loss or damage to the property of HCL by the Contractor will be charged from the contractor’s bills.

9. CONTRACT SUB- LETTING:

Sub-letting of the contract to any third party / agency will not be permitted.

10. HCL’S DISCRETION:

HCL reserves the right to reject any or all the tenders without assigning any reasons whatsoever.

11.RISK & COST:

In case the Contractor fails to execute the work as per the terms & conditions of the awarded work order after start of work, the Company reserves the right to award the contract for balance work at the Risk & Cost of the Contractor.

In case the bidder backs out after the bid opening after the opening of Techno-Commercial bid/Price bid in two bid system. They will be suspended for next Six (06) Months from the date of issue of suspension letter for participation in the future tender of HCL/ICC.

In case the Contractor fails to start the work after award of Work Order within the time frame stipulated in the Work Order, suitable penal actions will be taken against Contractor as decided by the Company, including debarment, etc.

12.DEDUCTION OF INCOME TAX: Income Tax under Section 194 (c) of I.T. Act or as applicable from time to time shall be deducted at source from the bills of the Contractor.

13.TDS: Tax under Income Tax Act and Goods and Service Tax Act shall be deducted at the time of payment, wherever applicable.

14. CENTRAL & STATE GOVT. ACTS:

The Contractor shall abide by all the Acts and Regulations relevant to this work, of Central and State Govt. and Rules framed there under from time to time and also be responsible for any compensation/ claim / penalty payable as a consequence due to any accident / default or any other reasons whatsoever.

15. STATUTORY OBLIGATIONS: The work, dispatch and delivery shall be arranged by the contractor in strict conformity with the all applicable Statutory Regulations including provisions of Industries Development and Regulations Act, 1951and any amendment thereof as applicable from time to time. HCL disowns any responsibility for any irregularities or contraventions of any of the Statutory Regulations during execution of the contract.

16. SECURITY REGULATIONS: The Contractor shall issue photo identity cards duly certified by HR department of all contract labour, who will be instructed by the Contractor or his representative to carry the same at all times during the duty. The Contractor's Supervisor/s will also identify their employees and regulate entry at gate at the time of entering and leaving the Works. All the persons engaged on the job shall be subject to security check by Security Officials on duty.

17. SAFETY OF THE LABORS: The manpower supplied by the Contractor will work under the supervision of Contractor or his representative. Any injury/accident occurred at work place shall immediately be reported to the Safety Manager of HCL/ICC and the Site in Charge of the Contractual agency with the parallel arrangement to send the injured labourer to any hospital or at HCL/ICC, Moubhandar Works Hospital for medical treatment. The charges of such medical treatment will be borne by the Contractor.

The Contractor must take full responsibility of safety of the labour deployed by him for the work and HCL property during the period of the contract.

18. RECOVERY OF SUMS DUE: - Whenever any claim against the contractor for payment of any sum of money arises out of or under the contract, HCL/ICC Ghatsila shall be entitled to recover such sums from any sum when due or which at any time thereafter may become due from the contractor under this or any other contract with HCL and should this sum be not sufficient to cover the recoverable amount, the contractor shall pay to HCL/ICC, Ghatsila on demand the balance remaining due immediately.

19. ABSOLUTE INTEGRITY OF THE CONTRACT: The Contractor and his persons shall maintain absolute integrity in carrying out the work and in case of any act detrimental to the interest of HCL/ICC including theft of Company's property by the Contractor or any of his persons, the contract shall be terminated / suspended without any notice and the balance work shall be executed through alternate sources at the risk and cost of the Contractor. In the event of suspension / termination of the work the Contractor shall not raise any claim for the period of suspension / termination, nor shall the Company (HCL/ICC) be liable to pay for it.

20. GST, AS APPLICABLE: GST as applicable will be paid extra by HCL if claimed in the bills. No subsequent claim on this account will be entertained by HCL. The Contractor should have a GST Registration number.

No persons below 18 years of age shall be allowed to work as per The Factories Act,1948 and Bihar/Jharkhand Factories Rules, 1950.

21. ENGINEER –IN-CHARGE/OFFICER-IN-CHARGE:

Name of E-I-C, Mr. Amit Narayan Degvekar, Designation-AGM (Exploration), Phone No-8210071178, Email Id-amit_nd@hindustancopper.com ICC will act as the Engineer-in-charge (E-in-C) / Officer-in–charge (O-in-C) of the Contract. The Contractor shall meet the E-in-C/O-in-C periodically and keep in communication with him for smooth and effective functioning of the work. The Contractor shall directly report to E-in-C/O-in-C of the contract, in case of any difficulty and follow his orders and directions.

22. OPTION CLAUSE: The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration.

23. Option clause shall be applied in exceptional circumstances, where there is no downward trend of price & the performance of party is satisfactory.

24. DRAWINGS: Drawings if any supplied to the contractor, are the property of HCL's unit at Indian Copper Complex and shall be returned to the company after completion of the contract.

25.VERIFICATION OF CHARACTER AND ANTECEDENTS: The Agency shall keep proper record of all the documents regarding character and antecedents etc. of the personnel engaged by him and as and when required, the successful bidder shall submit the same to the Officer-in-charge for necessary verification.

26.EXCLUSION OF LIABILITY FOR PAYMENT OF INTEREST:

The company shall not be liable for payment of any interest on the amount that may become payable to the contractor under this contract and matters connected therewith. Any waiver of any clause of this contract can be done only by the competent authority of the company. It shall be contractor's responsibility to comply with all Acts, Rules and Regulations, modifications etc. applicable from time to time including strict compliance of all provisions of contract Labor (Regulation and Abolition) Act 1970 and Rules framed and notifications etc. issued there under. In case of violation of any law applicable to you, the contract shall liable to be terminated forthwith at your risk and cost.

The contractor shall be liable for and shall indemnify the Company against any loss occasioned by theft, pilferage of and damage to the Company's property by the contractor himself or his workmen or agents, arising out of or in the course of or by reason of the execution of the works and due to any negligence, commission or default on the part of the contractor or to any circumstances within the contractor's control. The contractor will be fully responsible for the acts of his workmen or agents which may be found prejudicial to the interest of the Company.

Non availability of stores which are the responsibility of company to supply or any other cause which in the absolute discretion of the authority is beyond the contractor's control. In the event of happening of any such event(s) causing delay, the contractor shall immediately give notice in writing to engineer-in-charge but shall nevertheless, use instantly his best endeavors to prevent or make good the delay and shall do all that may be reasonably required to the satisfaction of authorities to proceed with the work. The contractor will apply for extension of time in writing within 24 hours of occurring of the above force major event(s)

27. INDEMNITY: The Company shall have no liability whatsoever concerning the labour/staff deployed by the successful bidder for the purpose. The successful bidder shall keep the Company indemnified against all losses or damages of liability arising out of or imposed in due course of employment of labour by them during entire run of the contract. In case of theft or losses or pilferage of Company's property, due to negligence or carelessness of the labour, a joint enquiry represented by both ICC and the Contractor will be held and findings thereof shall be submitted to the Unit Head, whose decision shall be final and bin ding on both the parties.

28. SITE CLEARANCE: Site clearance on completion of each and every job, work site has to be cleared in all respects to the satisfaction of E-in-C/O-in-C immediately after completion of jobs. Unwanted materials have to be shifted from the site as would be directed by E-in-C/O-in-C.

29. NO ASSIGNMENT: The order when placed shall not be assigned to any other agency by the Supplier.

30. REGISTRATION OF UDYOG AADHAR MEMORANDUM (UAM) NUMBER: Bidders who have their UAM number by Ministry of Micro Small and Medium Enterprises (MSME), should declare their UAM Number on Central Public Procurement Portal (CPPP), failing which such bidders will not be able to enjoy the benefits as per Public Procurement Policy for MSEs Order,2012 for the tenders invited electronically through CPPP.MSME bidders, who have registered their UAM number with CPPP, should submit proof of the same along with their offer for availing the benefits available to MSEs as contained in Public Procurement Policy for MSEs Order 2012, issued by MSME.MSEs owned by Scheduled Cast (SC) / Scheduled Tribe (ST) Entrepreneurs should also submit proof of the same along with their offer for procurement earmarked for MSEs owned by SC/ST.

In case MSME bidder has registered in Udyam Registration (UR) Portal, registration details is to be submitted

along with their techno-commercial offer.

31. MSME:

1) Micro and Small Enterprises [MSEs] shall be eligible for availing all the benefits as laid down under the Public Procurement Policy for MSEs [Order 2012].

2) The condition of prior turnover and prior experience shall be relaxed for Start-up Medium Enterprises [whether MSEs or otherwise] subject to meeting of quality and technical specifications of the tender.

3) The parties participating in the bidding shall have to provide documentary evidence of being registered as MSMEs to avail benefits available in this segment.

4) Declaration of UAM number by MSE bidders on CPP portal is mandatory, failing which such bidders will not be able to enjoy the benefits as per the Public Procurement Policy for MSE Order, 2012.

32. POLICY FOR MSEs UNDER PUBLIC PROCUREMENT BILL 2012:

Those MSEs which are registered with Districts Industries Centers (DICs) / Khadi & Village Industries Commissions (KVIC)/ Khadi& Village Industries Board (KVIB) / Coir Board/ NSIC/Directorate of Handicrafts and Handloom or any other body specified by Ministry of Micro, Small & Medium enterprises are eligible for availing benefits under the Public Procurement Policy.

In tender, participating MSEs quoting price within band of L1+15% shall also be allowed to supply a portion of requirement by bringing down their price to L1 price in a situation where L1 price is from someone other than an MSE. Such MSEs shall be allowed to supply up to 25% of total tendered value. In case of more than one such MSE, the supply will be shared proportionately.

Policy is meant for procurement of only goods produced and services rendered by MSEs.

Out of 25% target of annual procurement from MSEs, a sub target of 4% (Four per cent) is earmarked for procurement from MSEs owned by Scheduled Caste (SC)/ Scheduled Tribe (ST) Entrepreneurs and 3% for procurement from Women owned MSEs . However, in the event of failure of such MSEs to participate in tender process or meet tender requirements and L1 Price, 4% sub-target for procurement earmarked for MSEs owned by SC/ST Entrepreneurs will be met from other MSEs. MSEs participating against the tender should submit necessary documentary evidence for availing the facility of the policy. T he MSEs owned by SC/ST has to submit caste certificate issued by competent authority along with the offer.

MSEs would be treated as owned by SC/ST entrepreneurs:

In case of proprietary MSE, proprietor(s) shall be SC/ST

In case of partnership MSE, the SC/ST partners shall be holding at least 51% (Fifty-One per cent) shares in the unit

In case of Private Limited Companies, at least 51% (Fifty-One per cent) share shall be held by SC/ST promoters.

33. CONDITIONS FOR START-UP COMPANIES & STARTUP CERTIFICATION FROM DIPP: -

Subject to meeting of Quality and Technical specifications, HCL may consider allowing the participation of ‘’Start up’’ companies with capability to execute the supply/ services, as per technical specifications/ perform the job as per scope of work specified in the tender and subject to meeting extant & relevant guidelines of Government of India. The bidder who intends to participate as “Start-up” company should enclose the Certificate of Recognition issued by Department of Industrial Policy and Promotion, Ministry of Commerce & Industry, Govt. of India during submission of Technical bid.

34. PUBLIC PROCUREMENT (PREFERENCE TO MAKE IN INDIA), ORDER 2017 is applicable for the tender and takes into account Government of India notification No. P-45021/2/2017-PP (BE-II) dated 15.06.2017 (subsequently revised vide Orders dated 28.05.2018, 29.05.2019, 04.06.2020 & 16.09.2020) for procurement of any goods or services from any category of bidders, or provide preference to bidders on the grounds of promotion of locally manufactured goods or locally provided services.

All the provisions of the latest revision of the Order P-45021/2/2017-PP (BE-II) dated 16.09.2020 is applicable for this procurement case.

Class-I and Class-II local supplier of enquired items are eligible to participate in the bid as defined in Public procurement (Preference to make in India) order 2017 dated 04.06.2020 & subsequent revisions thereof. However, the new bidders, if qualified, shall be put to trials as detailed in the tender documents. Bids are to be submitted/ uploaded in complete accordance with enclosed Tender Documents.

Class-I and Class –II Local suppliers as defined in PPP-MII order 2017 and revision thereof are eligible to participate in the bid. The minimum local content must be 50% for Class-I local supplier and must be minimum 20% and less than 50% for class-II supplier at present. Accordingly, all the bidders are required to submit required Certificate indicating that the bidder is Class-I or Class –II local supplier with minimum percentage of local content in their product as per Public procurement (Preference to Make in India) order 2017 dated 04.06.2020 & subsequent revisions thereof. The certificate is to be issued by the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content.

Allocation of tendered qty.: - The guidelines for distribution of order quantity shall be as per clause 3B of the Public Procurement (Preference to Make in India), Order 2017- Revision regarding dated 16.09.2020 & subsequent revisions thereof.

35. RESTRICTION UNDER RULE 144(xi) OF THE GENERAL FINANCIAL RULES (GFRs) 2017:

Any bidder from a country which shares a land border with India will be eligible to bid in any procurement whether of Goods, Service including (consultancy services & non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the competent authority.

Vide office memorandum ref. No.F.12/1/2021-PPD (Pt.), dated 2nd March 2021, relaxation is provided for the procurement of spares parts and other essential service support like Annual Maintenance Contract (

AMC) /Comprehensive Maintenance Contract (CMC), including consumables for closed systems, from Original Equipment Manufacturers (OEMs) of their authorized agents, shall be exempted from the requirement of registration as mandated under Rule 144 (xi) of GFRs 2017.

All the clauses of Order No. F. No. 6/18/2019-PPD dated 23.07.2020 issued by Ministry of finance (dept of Expenditure) shall be applicable against the tender. The same is available at website https://doe.gov.in/procurement-policy-divisions)
All the bidders are required to submit compliance certificate as asked in the above order No. F. No. 6/18/2019-PPD dated 23.07.2020. The model certificate is given below:

Model certificate for tenders:

“We have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India. We certify that bidder M/s. _____ (name of the bidder) is not from such a country or if from such a country, has been registered with the Competent Authority. We hereby certify that bidder M/s. _______ (Name of bidder) fulfills all the requirement in this regard and is eligible to be considered against the tender.” If the above certificate given by a bidder, whose bid is accepted, is found to be false, this would be a ground for immediate rejection of bid/termination of contract and further legal action in accordance with law.

36. DECLARATION OF RELATIONSHIP WITH HCL EMPLOYEE:

It is compulsory for a bidder to declare whether the proprietor/ partner/ Director of the firm has any relation with any employee working in the Units concerned or Director of HCL and if so, give the details and the relationship.

37. SHORTFALL DOCUMENTS: The company reserves its right to seek any shortfall information/documents only in case of historical documents that pre-existed on the last date of bid submission, and which have not undergone change since then. It is clarified that any historical/pre-existed documents as on or before the last date of bid submission can be treated as shortfall documents for meeting the pre-qualification criteria and other terms & conditions of the ATC. Historical documents are those pre-existed documents available with the bidder as on the last date of bid submission, irrespective of the documents uploaded/submitted by the bidder in the bid submitted.

CLAUSES PERTAINING TO LEGAL ASPECTS

1. **PRICE REDUCTION:**

Compensation of loss on account of late delivery/performance shortfall (actually incurred as well as notional) where loss is pre-estimated and mutually agreed to is termed as Price Reduction. HCL is allowed to recover loss from the supplier/ contractor.

HCL may recover from the contractor, the Price Reduction a sum equivalent to 0.5 (half) per cent of the prices of any portion of stores and/or service delivered late, for each week or part thereof of delay. The total damages shall not exceed 10 (ten) per cent of the value of delayed goods/service or both. The Price Reduction shall not exceed the above amount of 10% stipulated in the original awarded contract value excluding GST. However, for contracts awarded through GeM portal, Price Reduction cannot exceed the above amount of 10% stipulated in the original awarded contract value including GST. Financial loss due to delayed delivery/service or both should be calculated for claim of Price Reduction.

2. **EVENTS OF DEFAULT:**

The following events shall be termed as Events of Default:

If the Contractor shall not execute the contract in the manner as stipulated in the contract or if it, in the opinion of HCL:

Does not execute the contract in conformity with the provisions of the contract, or

Substantially suspends any part of its execution for a period of fourteen (14) days without authority from HCL, or

Fails to carry on and execute the contract to the satisfaction of HCL, or

Commits or permits any breach of any of the provisions of the contract (on the part of the insurer to be performed or observed), or persists in any of the above mentioned breach of the contract for fourteen (14) days, after notice in writing shall have been given to the contractor by HCL requiring such breach to be remedied, or

Abandons the work(s), or

During the continuance of the contract, becomes bankrupt, makes any arrangement or composition with its creditors, or permits any execution to be levied or goes into liquidation other than for the purpose of amalgamation or reconstruction, or

Does not perform as per the agreed programme submitted by the contractor.

3. **TERMINATION DUE TO EVENTS OF DEFAULT:**

If HCL decides to terminate this contract, it shall in the first instance issue Preliminary Notice to the contractor. Within 15 days of receipt of the Preliminary Notice, the contractor shall submit to HCL in sufficient detail, the manner in which it proposes to cure the underlying Event of Default (the “Contractor’s Proposal to Rectify”). In case of non submission of the Contractor’s Proposal to Rectify within the said period of fifteen (15) days, HCL shall be entitled to terminate this contract by issuing Termination Notice, and to appropriate any Security, if subsisting.

In the Contractor’s Proposal to Rectify is submitted within the period stipulated thereof, the contractor shall have to its disposal a further period of fifteen (15) days to remedy / cure the underlying Event of Default. If, however, it fails to remedy / cure the underlying Event of Default within the stated period, HCL shall be entitled to terminate this contract and to appropriate the Security, if subsisting.

Penal action like forfeiting of Security Deposit, debarment for future tenders of HCL/ICC for one year may be taken as deemed fit.

4. **FORECLOSURE OF CONTRACT IN FULL OR IN PART:**

If at any time after acceptance of the Tender, HCL shall decide to foreclose or reduce the scope of the work(s) and hence not require the whole or any part of the work to be carried out, the Engineer-in-Charge shall give 10 days’ notice in writing to that effect to the contractor, provided that: In the event, any such action is taken by HCL, the contractor shall be paid full amount for the up to date quantum of work executed at work site as per billing schedule under the relevant items of work under this contract and in addition, a reasonable amount as certified by the Engineer-in-Charge or any other agency appointed by HCL for those supplied items which could not be utilized for execution of the work to the full extent because of the foreclosure.

5. **FORCE MAJEURE EVENTS:**

If at any time during the continuance of this contract, the performance in whole or in part by either party of any obligation under this contract shall be prevented or delayed by reason of war, act of hostility of public enemy, civil disruption or sabotage, fires, floods, explosions, epidemics, quarantine restrictions or acts of God (here-in-after referred to as events), provided notice of the happening of any such eventuality is given by the either party to the other within 21 days from the date of occurrence thereof, neither party shall by reasons of such event be entitled to terminate this contract nor shall either party have any claim for damages against the other in respect of such non-performance or delay in performance / execution under the contract. Provided also that such performance / execution under the contract should comme nce as soon as practicable, after such event has come to an end or ceased to exist and the decision of HCL as to whether the performance in whole or in part or any execution under this contract is prevented or delayed by reasons of any such event for a period exceeding 60 days, either party may opt to terminate the contract. If the contract is terminated under this clause, HCL shall have the liberty to take over from the contractor at a reasonable price, all unused, undamaged and acceptable materials, machinery, equipments, etc. at the site, being used for the performance of the contract and in the possession of the contractor at the time of such termination of such portion thereof as HCL may deem it fit, except such materials, equipments, etc. that the contractor may with the concurrence of HCL elect to retain. It is also understood in addition that this Force Majeure clause will cover parties' inability to perform on account of change in law or imposition of rules or restrictions by the Government.

6. **AMICABLE RESOLUTION:**

Save where expressly stated to the contrary in this contract, any dispute, difference or controversy of whatever nature between the Parties, howsoever arising under, out of or in relation to this contract including disputes, if any, with regard to any acts, decision or opinion of the Engineer-in-Charge and so notified in writing by either Party to the other (the "Dispute") shall in the first instance be attempted to be resolved amicably in accordance with the procedure set forth in part (b) below.

Either Party may require such Dispute to be referred to the work in charge of HCL and the contractor for amicable settlement. Upon such reference, the two shall meet at the earliest as per their mutual convenience and in any event within fifteen (15) days of such reference to discuss and attempt to amicably resolve the Dispute. If the Dispute is not amicable settled within fifteen (15) days of such meeting, either Party may refer the Dispute in accordance with the provisions of part (c) below.

In the event that any Dispute has not been resolved as per the provisions of (b) above, the same shall be referred to the Director or a person of equivalent designation, of HCL and the contractor for amicable settlement. Upon such reference, the two shall meet at the earliest as per their mutual convenience and in any event within fifteen (15) days of such reference to discuss and attempt to amicably resolve the Dispute. If the Dispute is not amicable settled within fifteen (15) days of such meeting between the two, either Party may refer the Dispute to arbitration in accordance with the provisions of Arbitration clause.

7. **Administrative Mechanism for Resolution of CPSEs Disputes (AMRCD)**

In the event of any dispute or difference relating to the interpretation and application of the provisions of commercial Contract(s) between Central Public Sector Enterprises (CPSEs)/Port Authorities inter se and also between CPSEs and Government Departments/Organizations (excluding disputes concerning Railways, Income- Tax, Customs & Excise), such dispute or difference shall be resolved through the Administrative Mechanism for Resolution of CPSEs Disputes (AMRCD) in accordance with DPE OM No. DPE02/0001/2023-AMRCD-FTS-13578 dated 08.12.2025, as amended from time to time. The decision of the AMRCD shall be final and binding on the Parties.

8. **ARBITRATION:**

Any dispute(s) of difference(s) not more than one crore of any kind whatsoever arising between the parties out of, or relating to the construction, meaning, scope, operation or effect of the contract or its validity or its breach thereof, if not settled mutually, shall be referred by the parties to this contract for Arbitration under the Arbitration and conciliation Act, 1996 and any amendments thereof, and the provisions there under, and the award made in pursuance thereof shall be binding on the parties.

· The Arbitrator will be appointed within 30 days of reference to the arbitration. A sole Arbitrator will be appointed by the mutual consent of the parties to the contract, who according to Arbitration and conciliation Act, 1996and any amendments thereof, will not standing conflict of interest with any of the organizations. A Declaration to the effect shall be submitted by the Arbitrator, to guarantee impartiality in the proceedings.

- In the event of such an arbitrator to whom the matter is originally referred, being transferred or has vacated his office because of retirement, or resignation or otherwise or refuses to act or is incapable of acting for any reason whatsoever, the appointment of arbitrator in his place will be done by mutual consent of the Parties to the Contract, who again would not stand in any conflict of interest with both the parties such person(s) shall be entitled to proceed from the stage at which his predecessor left it.
- The duration of proceedings and the fee structure will be governed by the 1996 Act. The venue of the arbitration shall be Ranchi only. The award of the arbitrator shall be final and binding on the parties. Any dispute, which arises at any point of time out of arbitration, shall have the jurisdiction of the court of Ghatsila/Jamshedpur.
- Subject to the above, the provision of Arbitration and conciliation Act, 1996 and the rules there under and the statutory modifications thereof shall govern such arbitration proceedings and shall be deemed to apply and be incorporated in this contract.

Disputes which are not covered under para 7 (AMRCD) & 8(Arbitration) above shall be referred to the Commercial Courts as per The Commercial Courts Act, 2015.

9. **JURISDICTION OF COURT:**

All disputes pertaining to this contract shall be subject to the jurisdiction of Ghatsila/Jamshedpur Court only.

10. **LIEN:**

The Company shall have a lien on all amounts that may become due and payable to the Contractor under this or any another contract/transaction of any nature whatsoever between the Company and Contractor including the Earnest Money and receipt of any debit or sum that may become due and payable to the Company or to any one by the Contractor with either along or jointly or transaction or any contract whatsoever between the Company and the Contractor and the Company shall be entitled to deduct the said debit or sum due and payable to the Company (of which the Company shall be the sole judge) or to any one by the Contractor from the amounts aforesaid and the Earnest Money and the Security Deposit without prejudice to the rights and remedies available in the Company.

Annexure-IV

DECLARATION OF SITE VISIT

(TO BE FILLED UP BY BIDDER)

I ……………………………………………………………………… hereby certify that my representatives have visited the site at Indian Copper Complex, a unit of Hindustan Copper Limited (a Govt. of India Enterprise), situated at P.O. Moubhandar- Ghatsila 832103 Dist. Singhbhum (East) Jharkhand and sought all necessary clarifications with respect t o **DGPS Survey and Topographical Survey of the Forest land proposed for Tailing Management under Capacity Enhancement of Mosabani Concentrator Plant and Tailing management land for 1.5MTPA Green field project** at Indian Copper Complex, Ghatsila, Dist. East Singhbhum Jharkhand, India, certify that all data furnished and information pertaining to the scope has been verified and considered in our offer covered by our Tender No. ………………………………………………….

Signature :

Name : ……………………………..

Designation : …………………………….

Date : ……………………………..

(HCL/ICC)

Signature :

Name : ……………………………..

Designation : …………………………….

Date : ……………………………..

Name of the Organization ………………………………….

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5. **Service & Support**

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

6. **Forms of EMD and PBG**

Successful Bidder can submit the Performance Security in the form of Payment online through RTGS / internet banking also (besides PBG which is allowed as per GeM GTC). On-line payment shall be in Beneficiary name

Hindustan Copper Ltd
Account No.
00000011524102778
IFSC Code
SBIN0001484
Bank Name
State Bank of India
Branch address
Moubhandar, Dist. East Singhbhum Jharkhand-832103
. Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer in place of PBG within 15 days of award of contract.

7. **Generic**

   1. The Seller shall not assign the Contract in whole or part without obtaining the prior written consent of buyer.
   2. The Seller shall not sub-contract the Contract in whole or part to any entity without obtaining the prior written consent of buyer.
   3. The Seller shall, notwithstanding the consent and assignment/sub-contract, remain jointly and severally liable and responsible to buyer together with the assignee/ sub-contractor, for and in respect of the due performance of the Contract and the Sellers obligations there under.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer ,is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid.All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM.If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers’ controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers’ Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1

bidders through a Random Algorithm executed by GeM system.

14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

This Bid is governed by the सामान्य नियम और शर्तें/General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो।बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---